

Smt. Ranjitha A T vs Sri Madhu Kumar B on 20 April, 2023

Author: Pradeep Singh Yerur

Bench: Pradeep Singh Yerur

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CP No. 40 of 2022

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 20TH DAY OF APRIL, 2023

BEFORE

THE HON'BLE MR JUSTICE PRADEEP SINGH YERUR

CIVIL PETITION NO. 40 OF 2022

BETWEEN:

SMT. RANJITHA A T
W/O B MADHU KUMAR
AGED ABOUT 27 YEARS
RESIDING AT SANGAHALLI VILLAGE
BASAVAPATNA HOBLI CHANNAGIRI TALUK
DAVANAGERE DISTRICT-577231.

...PETITIONER

(BY SRI.SHRAVAN MADHAV K P.,ADVOCATE)

AND:

SRI MADHU KUMAR B
S/O DEVENDRAPPA B
AGED ABOUT 30 YEARS
RESIDING AT NO.2 3RD CROSS
SHARAVATI NAGARA
SHIVAMOGGA-577201.

...RESPONDENT

Digitally
signed by B
LAVANYA
Location:
HIGH
COURT OF
KARNATAKA

(BY SRI.CHIDAMBARA G S.,ADVOCATE)

THIS CIVIL PETITION IS FILED UNDER SECTION 24 OF

CPC.,PRAYING TO ORDER THAT THE CASE IN M.C.NO. 72/2020
PENDING BEFORE THE PRINCIPAL JUDGE, FAMILY COURT AT
SHIVAMOGGA BE TRANSFERRED TO THE FILE OF THE
PRINCIPAL CIVIL JUDGE AND JMFC, CHANNAGIRI FOR
DISPOSAL IN ACCORDANCE WITH LAW & ETC.

THIS PETITION, COMING ON FOR ADMISSION, THIS DAY,
THE COURT MADE THE FOLLOWING:

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CP No. 40 of 2022

ORDER

Heard the learned counsel for petitioner - wife and learned counsel for respondent - husband.

2. This petition is preferred by the petitioner - wife seeking transfer of matrimonial proceedings filed by respondent-husband in MC No.72/2020 pending on the file of the Principal Judge, Family Court, Shivamogga to the Court of Prl. Civil Judge & JMFC, Channagiri.

3. It is the case of the petitioner - wife that she married the respondent on 16.04.2015 at Sagarpete Police Station, Basavapatna Hobli, Channagiri Taluk. It was a love marriage between them. After the marriage both started to reside in their matrimonial residence in Sangahalli Village.

4. It is the case of the petitioner that initially their marriage was not accepted by her parents, but thereafter they reconciled with them. Her parents in order to help petitioner - wife offered respondent - husband some monetary aid so as to get himself enrolled for computer training. After training he left the place to Shivamogga in search of employment. Thereafter, on attaining the employment he took petitioner to a rental house at Sheshadripura, Shivamogga. They lived happily and they were blessed with a son.

5. After the birth of the child respondent - husband sent her to her parental home in Sangahalli. Respondent - husband changed residence and petitioner returned from her parental home. However, the behavior and attitude of the respondent towards petitioner and their son started to change. The respondent started to harass her in all the ways.

6. The petitioner lodged a complaint before Basavapatna Police Station, against the respondent seeking for restitution of conjugal rights. She also made application in Women Santhawana Centre at Channagiri, but the respondent did not respond and the petitioner and her son were forced to reside with her parents.

7. On 02.03.2020 respondent filed M.C. No.72/2020 under Section 13(1)(ia) & (ib) of Hindu Marriage Act, 1955 before the Principal Judge, Family Court, Shivamogga seeking for a decree of divorce. She appeared and filed statement of objections and the case now is at the stage of evidence.

8. In view of all these developments, she is finding very difficult to maintain herself and her child. Hence, she preferred Crl. Misc. No.356/2021 before Prl. Civil Judge & JMFC, Channagiri seeking for maintenance.

9. It is contended by petitioner that respondent filed M.C. No.72/2020 in Shivamogga only to harass the petitioner. She has to take care of minor child. It is very difficult for her to incur huge expenditure on her travel, accommodation and food, to appear for the Court proceedings at Shivamogga. The distance between Channagiri and Shivamogga is about 50 Kms. and it is very difficult for the petitioner to travel all the way along with a minor child to attend the case at Shivamogga. Hence, she seeks to transfer the petition filed by the respondent - husband from the Court of the Principal Judge, Family Court, Shivamogga to the Court of Prl. Civil Judge & JMFC, Channagiri.

10. Under the facts and circumstances of the case, I do not find any legal impediment to transfer the case pending before the Principal Judge, Family Court, Shivamogga to the Court of Prl. Civil Judge & JMFC, Channagiri.

11. It is also apparently seen that less amount of hardship would be caused to the respondent-husband in traveling to Channagiri to attend the aforesaid cases rather than the petitioner - wife attending the case at Shivamogga preferred by the respondent-husband.

12. In cases of transfer petition of matrimonial proceedings what is to be seen is the inconvenience and comparative hardship that would be caused to the parties. In General circumstances it should favour the wife as she would have to travel along with an attendant which would cause more inconvenience to her than the husband.

13. Accordingly, I proceed to pass the following:

ORDER

i) Petition is allowed;

ii) The matrimonial proceedings in MC No.72/2020 pending on the file of the Principal Judge, Family Court, Shivamogga is ordered to be transferred to the Court of Prl. Civil Judge & JMFC, Channagiri.

Sd/-

JUDGE VK IN THE HIGH COURT OF KARNATAKA AT BENGALURU [SMT. RANJITHA A T VS. SRI MADHU KUMAR B] PSYJ 13.10.2023 (VIDEO CONFERENCING / PHYSICAL HEARING) ORDERS ON I.A.NOS.1 AND 2 OF 2023 Learned counsel for petitioner and learned counsel for respondent are present before the Court.

This Court vide its order dated 20.04.2023 has allowed the present civil petition transferring the matrimonial proceedings in MC.No.72/2020 pending on the file of the Principal Judge, Family Court, Shivamogga to the Court of the Principal Civil Judge and JMFC, Channagiri.

However, the petitioner has filed an application under Order VI Rule 17 read with Section 151 of CPC seeking to carry-out the amendment in the prayer of the civil petition with regard to the name of the Court to which the transfer petition was filed namely, Principal Civil Judge and JMFC, Channagiri. Now, the amendment is sought to transfer the petition to the Senior Civil Judge and JMFC, Channagiri instead of the Principal Civil Judge and JMFC, Channagiri, for disposal in accordance with law.

These applications are necessitated for the reason that at the time of filing of the transfer petition, by mistake, the petitioner has mentioned the transferee Court to be the Principal Civil Judge and JMFC, Channagiri. However, the said Court does not have jurisdiction to try the Family Court matters pertaining to matrimonial proceedings.

Under the circumstances, pursuant to disposal of this petition, the present applications are filed as the order passed by this Court would become ineffective, in view of the fact that the said Principal Civil Judge and JMFC, Channagiri does not have jurisdiction to deal with matrimonial proceedings.

Learned counsel for respondent is present, who also concurs with the submission and applications made by the learned counsel for petitioner. Accordingly, these application deserve to be favoured for effective adjudication and implementation of the order passed by this Court in CP.No.40/2022 dated 20.04.2023.

For the aforesaid reasons, I pass the following:-

ORDER

i) I.A.Nos.1/2023 and 2/2023 are allowed;

ii) Learned counsel for petitioner is permitted to carry-out the amendment in the civil petition incorporating the transferee Court to be 'the Senior Civil Judge and JMFC, Channagiri' instead of the Principal Civil Judge and JMFC, Channagiri, during the course of the day and file an amended petition by serving a copy thereof on the other side;

iii) In view of the order passed today permitting the petitioner to carry-out the amendment of the transferee Court from the Principal Civil Judge and JMFC, Channagiri to the Senior Civil Judge and JMFC, Channagiri, the order passed by this Court dated 20.04.2023 is hereby modified and it shall be read as follows:-

"1) The petition is allowed.

2) The matrimonial proceedings in MC No.72/2020 pending on the file of the Principal Judge, Family Court, Shivamogga is ordered to be transferred to the Court of the Senior Civil Judge and JMFC, Channagiri."

Sd/-

JUDGE CPN